

26STCV23737 26STCV23737

County: los-angeles

Division: Civil Law and Motion

Department: 408

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Case Number: 26STCV23737 Hearing Date: September 3, 2026 Dept: 408

Plaintiff Jason Ivan Escobar Cruz's Counsel Dario C. Gomez,
Esq.'s Motion to be Relieved as Counsel is GRANTED, effective upon the filing
of proof of service showing service of the signed order.

I.

BACKGROUND

On July 28, 2026, Plaintiff Jason
Ivan Escobar Cruz ("Plaintiff") filed a complaint against Defendants Boparai
Trucklines Inc. and Harpal Singh ("Defendants") alleging causes of action for:

1.

Motor Vehicle Negligence; and

2.

General Negligence.

On July 31, 2026, counsel for Plaintiff,
Dario C. Gomez, Esq. ("Counsel"), filed: (1) MC-051, Motion to be Relieved as
Counsel; (2) Declaration in Support of Motion to be Relieved as Counsel; (3)
MC-053, Proposed Order; and (4) Proof of Service. No opposition or other
responsive pleading has been filed.

II.

LEGAL

STANDARD

"The attorney in an action or

special proceeding may be changed at any time before or after judgment or final determination, as follows: 1. Upon the consent of both client and attorney, filed with the clerk, or entered upon the minutes; 2. Upon the order of the court, upon the application of either client or attorney, after notice from one to the other.” (Code Civ. Proc., § 284.)

An attorney moving to be relieved as counsel under California Code of Civil Procedure section 284(2) must meet the requirements set out in California Rules of Court, rule 3.1362. To comply with Rule 3.1362, the moving party must submit the following forms: (1) Notice of Motion and Motion to be Relieved as Counsel; (2) Declaration in Support of Attorney's Motion to be Relieved as Counsel; and (3) Order Granting Attorney's Motion to be Relieved as Counsel. (Cal. Rules of Court, Rule 3.1362, subd. (a), (c), (e).)

The moving party must serve the aforementioned forms on the client and all other parties who have appeared in the case. (Cal. Rules of Court, Rule 3.1362, subd. (d).) Further, when the client is served by mail, the attorney's declaration must show that the client's address was confirmed within the last 30 days and how it was confirmed. (Ibid.)

Absent a showing of resulting prejudice, an attorney's request for withdrawal should be granted. (People v. Prince (1968) 268 Cal.App.2d 398, 406.)

III.

DISCUSSION

Counsel's motion complies with the requirements of California Rules of Court, rule 3.1362, in that Counsel provided a motion to be relieved as Counsel; a declaration in support; a proposed order granting Counsel's motion; and proof of service as to Plaintiff.

The declaration states that Plaintiff's conduct renders it unreasonably difficult for Counsel to carry out representation effectively. (Gomez Decl., ¶ 2.) Counsel further declares that good cause exists to withdraw as there has been a breakdown in the attorney-client relationship and Plaintiff has failed to substantially fulfill his obligation to Counsel,

including communicating with Counsel.

(Ibid.)

The court determines that the requirements of Rule 3.1362 enumerated above have been sufficiently met. The court grants the requested withdrawal effective upon the filing of proof of service showing service of the signed order to Plaintiff.

IV.

CONCLUSION

Plaintiff Jason Ivan Escobar Cruz's Counsel Dario C. Gomez, Esq.'s Motion to be Relieved as Counsel is GRANTED, effective upon the filing of proof of service showing service of the signed order.